

Contract for Public Defense Services

The City of Cheyenne, referred to as “the City,” and Lance & Hall LLP, referred to hereafter as “the Firm,” agree to the provision of public defense services as outlined below for the period April 19, 2022 to April 19, 2023 (one year). The City’s Representative is the Mayor, Patrick Collins, and the Representative of the Firm is Elizabeth B. Lance.

Following are the underlying bases for the Contract:

- The City, through the Cheyenne Municipal Court has a constitutionally mandated responsibility to provide public defender services in certain criminal cases where Defendants are indigent (or otherwise qualify).
- The City desires to have legal services performed for eligible persons entitled to public representation in Cheyenne Municipal Court by the Firm, as authorized by law.
- The Firm agrees to provide, and the City agrees to pay for, competent, zealous representation to its clients as required by the controlling Wyoming Rules of Professional Conduct for Attorneys at Law.
- The City and the Firm agree that any and all funds provided pursuant to this Contract are provided for the sole purpose of provision of legal services to eligible clients of the Firm.

The parties agree as follows:

I. Duration of Contract

This Contract shall commence on April 19, 2022 and terminate on December 31, 2023, unless extended or terminated earlier in a manner allowed by this Contract.

II. Definitions

The following definitions control the interpretation of this Contract:

A. Eligible client means a defendant (adult or juvenile) who is facing criminal charges in the Cheyenne Municipal Court determined by a finding by the sitting Municipal Court Judge to be entitled to a court-appointed attorney.

B. Case; Case Completion: A Case shall mean representation of one defendant in a criminal matter (whether by information or citation(s)). Completion of a case is deemed to occur when all necessary legal action has been taken during the following period(s): In criminal cases, from arraignment through disposition, from arraignment through the necessary withdrawal of counsel after the substantial delivery of legal services, or from the entry of counsel into the case (where entry into the case occurs after arraignment through no fault of the Firm) through disposition or necessary withdrawal after the substantial delivery of legal services. Nothing in this definition prevents the Firm from providing necessary legal services to an eligible client prior to arraignment, but payment for such services will require a showing pursuant to the Extraordinary Expenses paragraph below.

C. Disposition: Disposition in criminal cases shall mean: 1) the dismissal of charges, 2) the entering of an order of deferred prosecution, 3) an order or result requiring a new trial, 4) imposition of sentence, or 5) deferral of any of the above coupled with any other hearing on that cause number, including but not limited to misdemeanor probation review, that occurs within thirty (30) days of sentence, deferral of sentence, or the entry of an order of deferred prosecution. No hearing that occurs after 30 days of any of the above will be considered part of case disposition for the purpose of this Contract except that a restitution hearing ordered at the time of original disposition, whether it is held within 30 days or subsequently, shall be included in case disposition. Disposition includes the filing of a notice of appeal, if applicable. Nothing in this definition prevents the Firm from providing necessary legal services to an eligible client after disposition, but payment for such services will require a showing pursuant to the Extraordinary Expenses paragraph below.

D. Representational Services: The services for which the City is to pay the Firm are representational services, including lawyer services, investigation and appropriate sentencing advocacy and social work services, and legal services including but not limited to interviews of clients and potential witnesses, legal research, preparation and filing of pleadings, negotiations with the appropriate prosecutor and court regarding possible dispositions, and preparation for and appearance at all court proceedings. The services for which the City is to pay the Firm do not include extraordinary expenses incurred in the representation of eligible clients. The allowance of extraordinary expenses at the cost of the City will be determined by a court of competent jurisdiction in accordance with relevant state statute, court rule, and constitutional provisions.

E. Misappropriation of Funds: Misappropriation of funds is the appropriation of funds received pursuant to this Contract for purposes other than those sanctioned by this Contract. The term shall include the disbursement of funds for which prior approval is required but is not obtained.

III. Independent Contractor

The Firm is, for all purposes arising out of this Contract, an independent contractor, and neither the Firm nor its employees shall be deemed employees of the City. The Firm shall complete the requirements of this Contract according to the Firm's own means and methods of work, which shall be in the exclusive charge and control of the Firm and which shall not be subject to control or supervision by the City, except as specified herein.

IV. Firm's Employees and Equipment

The Firm agrees that it has secured or will secure at the Firm's own expense, all persons, employees, and equipment required to perform the services contemplated/required under this Contract.

V. Minimum Qualifications for Firm Attorneys

- A. Every Firm attorney shall satisfy the minimum requirements for practicing law in Wyoming, including active licensure, as determined by the Wyoming Supreme Court. Seven hours of each year's required continuing legal education credits shall be spent in courses relating to criminal law practice and/or procedure or other areas of law in which the Firm provides legal services to eligible clients under the terms of this Contract. The Firm will maintain for inspection on its premises records of compliance with this provision.
- B. Failure on the part of the Firm to use attorneys and/or staff with the appropriate amount of experience or to supervise appropriately its attorneys shall be considered a material breach of this Contract.

VI. Performance Requirements

The Firm agrees to provide the services and comply with the requirements of this Contract. Any material breaches of this agreement on the part of the Firm or the City may result in action as described in this Agreement.

The Firm agrees to provide representational services in the following types of cases: Criminal Misdemeanor (TRT, COM, and CRM)

The Firm agrees to staff its cases according to the following provisions:

- A. Continuity of representation at all stages of a case, sometimes referred to as "vertical" representation, promotes efficiency, thoroughness of representation, and positive attorney/client relations. The Firm agrees to make reasonable efforts to continue the initial attorney assigned to a client throughout all cases assigned in this Contract. Nothing in this section shall prohibit the Firm from making necessary staff changes or staff rotations at reasonable intervals, or from assigning a single attorney to handle an aspect of legal proceedings for all clients where such method of assignment is in the best interest of the eligible clients affected by such method of assignment.
- B. Firm agrees an attorney will contact defendant(s) in assigned cases within seventy-two (72) hours from the Cheyenne Municipal Court appointing the Firm to a particular case(s).
- C. Conflicts of interest may arise in numerous situations in the representation of indigent defendants. The Firm agrees to screen all cases for conflict(s) upon assignment and throughout the discovery process, and to notify the City promptly if/when a conflict is discovered. The Firm will refer to the Wyoming Rules of Professional Conduct for Attorneys at Law, as interpreted by Wyoming State Bar Association and/or opinions of the Wyoming Supreme Court, and to the American Bar Association Standards for Criminal Justice in order to determine the existence and appropriate resolution of conflicts.

VII. Attorney Training

Ongoing professional training is a necessity in order for an attorney to keep abreast of changes and developments in the law and assure continued rendering of competent assistance of counsel. The

Firm shall provide sufficient training, whether in-house or through a qualified provider of CLE, to keep all its attorneys who perform work under this Contract abreast of developments in relevant law, procedure, and court rules.

VIII. Compensation and Method of Payment

A. For the term of this contract, the City shall pay the Firm a rate of \$90.00 per billable hour of work on assigned cases. Payments will be made on a monthly basis. It is possible that the actual amount of compensation will vary according to other terms of this Contract.

B. The Firm shall provide the City—Mayor’s Office—an itemized billing invoice for all hours of work performed on each assigned case by close of business on the last Friday of each calendar month. Additionally, for each assigned case, the Firm shall provide a breakdown of tasks performed (appearance, research, drafting pleadings, consultation, etc.) by tenths of an hour. For example

Case Number	Defendant Name	Task	Hours/Minutes
2021-COM-0000	John Doe	Draft entry of appearance	.1

D. In the event of Firm failure to substantially comply with any items and conditions of this Contract or to provide in any manner the work or services as agreed to herein, the City reserves the right to withhold any payment until corrective action has been taken or completed. This option is in addition to and not in lieu of the City's right to termination as provided herein.

IX. Establishment and Maintenance of Records

A. The Firm agrees to maintain accounts and records, including personnel, property, financial, and programmatic records, which sufficiently and properly reflect all direct and indirect costs of services performed in the performance of this Contract, including the time spent by the Firm on each case.

B. The Firm agrees to maintain records which sufficiently and properly reflect all direct and indirect costs of any subcontracts or personal service contracts. Such records shall include, but not be limited to, documentation of any funds expended by the Firm for said personal service contracts or subcontracts, documentation of the nature of the service rendered, and records which demonstrate the amount of time spent by each subcontractor personal service contractor rendering service pursuant to the subcontract or personal service contract.

C. Records shall be maintained for a period of 5 years after termination of this Contract unless the City grants permission to destroy such records.

X. Hold Harmless and Indemnification

A. The City assumes no responsibility for the payment of any compensation, wages, benefits, or taxes by the Firm to Firm employees or others by reason of the Contract. The Firm shall protect, indemnify, and save harmless the City, its representatives, officers,

agents, and employees from and against any and all claims, costs, and losses whatsoever, occurring or resulting from Firm's failure to pay any compensation, wages, benefits or taxes except where such failure is due to the City's wrongful withholding of funds due under this Contract.

B. The Firm agrees that it is financially responsible and liable for and will repay the City for any material breaches of this contract including but not limited to misuse of Contract funds due to the negligence or intentional acts of the Firm, its officers, employees, representatives, or agents.

C. Each party to this agreement assumes the risk of any liability arising from its own conduct. Each party agrees that it will be responsible for any loss, claim, damages or demands resulting from its negligence and the negligence of its employees and agents. Neither party agrees to insure, defend, or indemnify the other. The City does not waive defenses available to it under the governmental claims act.

XI. Insurance

Without limiting the Firm's indemnification, it is agreed the Firm shall maintain in force, at all times during the performance of this Contract, a policy or policies of insurance covering its operation as described below.

A. General Liability Insurance

The Firm shall maintain continuously public liability insurance with limits of liability not less than: \$250,000 for each person, personal injury, \$500,000 for each occurrence, property damage, liability, or a combined single limit of \$500,000 for each occurrence, personal injury and/or property damage liability.

Such insurance shall include the City as an additional insured and shall not be reduced or canceled without 30 days' prior written notice to the City. The Firm shall provide a certificate of insurance or, upon written request of the City, a duplicate of the policy as evidence of insurance protection.

B. Professional Liability Insurance

The Firm shall maintain or ensure that its professional employees maintain professional liability insurance for all acts which occur during their employment with the Firm which constitute professional services in the performance of this Contract. Specifically, the Firm or its professional employees must maintain professional liability insurance in relation to representation in appointed cases pursuant to this Agreement. For purposes of this Contract, professional services shall mean any services provided by a licensed professional.

Such professional liability insurance shall be maintained in an amount not less than \$1,000,000 combined single limit per claim/aggregate. The Firm further agrees that it shall have sole and full responsibility for the payment of any funds where such payments are occasioned solely by the professional negligence of its professional employees and

where such payments are not covered by any professional liability insurance, including but not limited to the amount of the deductible under the insurance policy.

Such insurance shall not be reduced or canceled without 30 days' prior written notice to the City. The Firm shall provide certificates of insurance or, upon written request of the City, duplicates of the policies as evidence of insurance protection.

XII. Termination and Suspension

A. The City may terminate this Contract in whole or in part upon 10 days' written notice to the Firm in the event that –

1. The Firm substantially breaches any duty, obligation, or service required pursuant to this Contract;
2. The Firm engages in misappropriation of funds; or
3. The duties, obligations, or services herein become illegal, or not feasible.

B. The Firm reserves the right to terminate this Contract without cause upon sixty (60) days written notice to the City.

C. In the event of the termination or suspension of this Contract, the Firm shall continue to represent clients that were previously assigned, and the City will be liable for any payments owed for the completion of that work. The Firm will remit to the City any monies paid for cases not yet assigned or work not performed under the Contract. The City may request that the Firm attempt to withdraw from any case assigned and not completed. Should a court require, after the Firm has attempted to withdraw, the appearance of counsel from the Firm on behalf of any client previously represented by the Firm where such representation is no longer the obligation of the Firm pursuant to the terms of this Contract, the City will honor payment to the Firm upon judicial verification that continued representation is required.

D. If termination is due to misappropriation of funds, non-performance of the scope of services, or fiscal mismanagement, the Firm shall return to the City those funds, unexpended or misappropriated, which, at the time of termination, have been paid to the Firm by the City.

E. Otherwise, this Contract shall terminate on the date specified herein, and shall be subject to extension only by mutual agreement of both parties hereto in writing.

XIII. Assignment/Subcontracting

A. The Firm shall not assign or subcontract any portion of this Contract without consent of the City. Any consent sought must be requested by the Firm in writing not less than five (5) days prior to the date of any proposed assignment or sub-contract, provided that this provision shall not apply to short-term personal service contracts with individuals to perform work under the direct supervision and control of the Firm. Short-term personal service contracts include any contract for a time less than one year. Any individuals

entering such contracts shall meet all experience requirements imposed by this Contract. The City shall be notified of any short-term contracts which are renewed, extended, or repeated at any time throughout the Contract.

B. The term "Subcontract" as used above shall not be read to include the purchase of support services that do not directly relate to the delivery of legal services under the Contract to clients of the Firm.

C. The term "Personal Service Contract" as used above shall mean a contract for the provision of professional services which includes but is not limited to counseling services, consulting services, social work services, investigator services and legal services.

XIV. Notices

Whenever this Contract provides for notice to be provided by one party to another, such notice shall be:

1. In writing; and
2. Directed to the Chief Executive Officer of the Firm and the director/manager of the City department/division specified on page 1 of this Contract.

Any time limit by which a party must take some action shall be computed from the date that notice is received by said party.

XV. The Parties' Entire Contract/Waiver of Default

The parties agree this Contract is the complete expression of the terms hereto and any oral representations of understanding not incorporated herein are excluded. Both parties recognize that time is of the essence in the performance of the provisions of this Contract. Waiver of any default shall not be deemed to be a waiver of any subsequent default. Waiver of a breach of any provision of this Contract shall not be deemed to be a waiver of any other subsequent breach and shall not be construed to be a modification of the terms of this agreement unless stated to be such through written mutual agreement of the parties, which shall be attached to the original Contract.

XVI. Nondiscrimination

During the performance of this Contract, the Firm or any party subcontracting with the Firm under the authority of this Contract shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

The Firm shall comply fully with all applicable federal, state, and local laws, ordinances, executive orders, and regulations which prohibit such discrimination.

Agreed:

Firm

Date: _____

City of Cheyenne

Date: _____